

RESOLUTION NO. 19-21

RESOLUTION TO ESTABLISH A FEE SCHEDULE FOR PUBLIC RECORDS REQUESTS MADE PURSUANT TO WYOMING STATUTE §16-4-201 et seq.

WHEREAS, the County Commissioners of the County of Uinta, in the State of Wyoming, have previously resolved to identify the Uinta County Clerk as the “designated public records person” for Uinta County, Wyoming, pursuant to Wyoming Statute §16-4-202(e); and

WHEREAS, the County Commissioners of the County of Uinta, in the State of Wyoming, pursuant to Wyoming Statute §16-4-204, desire to establish a fee schedule for public record requests properly submitted to the Uinta County Clerk to insure notice is provided by the record requester and the public in general to provide uniformity in application in relation to records produced in conformity with the Wyoming Public Records Act;

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF COMMISSIONERS OF UINTA COUNTY, STATE OF WYOMING; that the Uinta County Clerk, as the designated public records person for Uinta County, as well as all other record custodians acting to directly produce public records pursuant to the Wyoming Public Records Act, shall address the following policy and fee schedule:

1. All requests will be submitted in writing. If a request is not submitted in writing then the public records custodian may demand the same in written form;
2. Within seven (7) days of receipt of a records request, the Uinta County Clerk, as the designated public records person, will notify the applicant whether or not the information sought is within the access and control of Uinta County; whether or not access to records is being denied and under what basis, and notify the applicant if any information requested is in active use at the time of the request and, therefore, unavailable.
3. All public records properly requested shall be released no later than thirty (30) days after acknowledgement of receipt of a public records request unless a lawful basis for denial is established. If good cause exists as to why production cannot occur within the thirty (30) days then the parties may mutually agree on a release date for the material. If no acceptable resolution is found then the applicant may appeal to the ombudsman or petition the district court for relief.
4. All public records requests must describe the record or information with such specificity as to identify the nature and expanse of the request.
5. Any fee established by Federal, State or other law will be charged as otherwise directed. In the absence of such statutory authority, however, the following fee schedule shall apply:

Photocopies:	Black and White:	\$1.00 per side per page
	Color:	\$2.00 per side per page

Scanned pages:	\$1.00 per side per page
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Facsimile Service:	Transmit:	\$2.00 per side per page
	Receive:	\$2.00 per side per page

Electronic Record Production:	Per medium used (i.e. USB, disc, DVD)	\$10.00
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Staff Fees:	\$15.00 per hour after 1 hour
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Postage Charge:	Actual charges incurred by Uinta County.
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Nothing in this resolution should be construed as authorizing a fee to be charged as a condition of making a public record available for inspection.

PASSED, APPROVED AND ADOPTED this 1 day of October, 2019

Eric South
Eric South, Chairman
The Board of Uinta County Commissioners

ATTEST: Amanda Hutchinson
Amanda Hutchinson, Uinta County Clerk

